

# **FAME, ARTISTRY AND THE LAW: A DUAL JURISDICTION EVALUATION OF PUBLICITY RIGHTS IN VIDEO GAMES**

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**FRANCISCO JAVIER ALCARAZ MARTINEZ**



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# **Fame, Artistry and the Law: A Dual Jurisdiction Evaluation of Publicity Rights in Video Games**

Francisco Javier Alcaraz Martinez\*

Outstanding LLM Dissertations 2023

## **Abstract**

This dissertation takes a deep dive into the intriguing connections between trademark law, image rights, and the ever-changing video game world. The video game industry has come a long way from simple graphics to immersive virtual experiences, with trademarks playing a key role in safeguarding brand identity. The use of celebrity images adds a touch of realism to games, and in the US, there are strong laws protecting against their unauthorised use. Examining this legal structure reveals that the interaction among trademarks, the protection of celebrity rights, and the cultivation of artistic expression hold significant significance. Innovations like the Rogers and transformative-use tests offer valuable perspectives on achieving this intricate equilibrium. This paper shifts its focus to the UK, where it explores how image rights are protected and how passing off plays a crucial role when specific publicity rights are lacking. This sets the stage for a comparison with the US approach, where it delves into the complexities of UK image rights protection. Additionally, this dissertation also demonstrates that privacy regulations and acts pertaining to data protection have augmented the rights of individuals within this domain.

Finally, this paper brings together the pieces of the puzzle and proposes the need for a new publicity right tort in the UK. This becomes especially important as advanced video games become more prominent, raising questions about how identity rights are respected. Drawing inspiration from the US and innovative legal tests, it explores how a new tort could balance the freedom of expression with image rights.

It also peeks into the future, analysing current challenges like user-generated avatars and AI-generated content, which could make unauthorised likeness usage a concern. This study emphasises the pressing need to modernise the UK's strategy concerning image rights through a more profound comprehension of the intricate connections between trademark law, image rights, celebrity likenesses, and the realm of video games.

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\* Francisco Javier Alcaraz Martinez is a graduate of LLM in Intellectual Property and the Digital Economy programme at the University of Glasgow. A special thanks goes to Dr Amy Thomas for the guidance and support as supervisor of this dissertation.

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## Introduction

The entertainment sector has undergone a radical change recently, especially in the area of video games, thanks to the rapid growth of technology. The boundaries between reality and virtuality have also largely blurred due to it. Millions of gamers worldwide have been mesmerised by the lifelike graphics and captivating gameplay of video games, where characters and avatars, who have been modelled after actual people for years, now gain from technology and hyperrealism. Because of the increasing creative potential, which has raised the artistic and monetary worth of image rights, celebrities now have more opportunities to monetise their image rights through licensing.<sup>1</sup>

The use of celebrity images in video games has raised various legal concerns. Although it enhances the overall gaming experience, it also brings up complicated legal matters related to intellectual property rights, mainly trademark law and the right of publicity. The latter refers to an individual's exclusive right to their personality, which includes the ability to prevent others from using their name, distinctive features, signatures, or catchphrases without their consent. This idea stems from the contention that each individual should have some degree of control over how their "persona" is marketed.

Many nations, such as the US, Canada, France and Germany in particular, have well-established rights of publicity. As an illustration, the dualistic model used in France uses two distinct rights, one positive and patrimonial and the other negative and extra-patrimonial, to safeguard the interests in exploitation and publicity protection. The right to one's image, which is an "inherent part of the person", is distinguished from the right over one's image as "a commodity to be exploited" in French law.<sup>2</sup> Moreover, in the second *Hannover v Germany* judgement, the European Court of Human Rights (ECtHR) affirmed that the image is a significant aspect of a person's identity. It displays their distinct qualities and sets them apart from others. Therefore, the right to safeguard one's image is crucial to personal growth. This includes the right to manage the usage of the image, such as the ability to decline its publication.<sup>3</sup> In contrast, under UK law, a person must rely on a confusing array of legal principles in order to safeguard their

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<sup>1</sup> Gaetano Dimita, Andrea Rizzi and Nicoletta Serao, 'Image rights, creativity and videogames' (2020) *Journal of Intellectual Property Law & Practice*, Volume 15, Issue 3, Pages 185–192 <<https://doi.org/10.1093/jiplp/jpz178>> accessed 2 June 2023.

<sup>2</sup> Gillian Black, 'Publicity and Image Rights in Scots Law', (2010), *Edinburgh Law Review*, Volume 14, Issue 3, <<https://doi.org/10.3366/elr.2010.0302>> accessed 2 June 2023.

<sup>3</sup> *Von Hannover v Germany (No 2)* (App nos 40660/08 and 60641/08 [2012] EMCR 16 (ECtHR, Grand chamber), para 96.

reputation. Data protection, advertising standards, and intellectual property violations are a few examples, with trademark infringement and passing-off allegations being the most frequent.<sup>4</sup>

Regarding image rights, it is crucial to take freedom of speech into account as well. These two principles can occasionally clash in court cases. The right to publicity shields people from unauthorised commercial use of their identity, whereas freedom of speech protects people from censorship and interference when they express their ideas. To safeguard individual autonomy and artistic freedom while still respecting financial interests and ownership over one's image, it is imperative to strike a balance between these rights. Finding this balance allows creators to freely communicate their views without unneeded restraints, while public figures can avoid false endorsements or misrepresentations.

This is the subject matter of Chapter 1: A brief introduction to the video game industry, its expansion, and the relationship between trademark law and video games. In video games, including celebrity images may confuse users by associating a virtual character with a real-life celebrity. The passing off tort, inextricably linked to trademark law, is one defence frequently employed in these instances in the UK. Passing off, as used in this study, is a harm that lessens the appeal or charisma of a celebrity's reputation. This is particularly crucial when it is falsely claimed that a famous person has endorsed a specific product, service, or organisation.<sup>5</sup> This defence will be addressed in upcoming chapters.

In Chapter 2, this paper explores the concept of the right of publicity, including its historical development concerning celebrity images. We also examine the challenges and implications of applying publicity rights in digital media, as well as how to balance these rights with considerations of Freedom of Expression. To fully understand what a right of publicity might look like in UK legislation, we draw comparisons between the legal systems of the US and the UK. Through examining landmark cases and legal frameworks in this domain, our study aims to provide insight into the delicate balance between protecting individual rights and allowing for artistic expression.

As stated before, this dissertation explores the legal framework in the United States surrounding image rights. The United States has a long history of recognising the right of publicity, which makes it an excellent case study for this analysis. By comparing the robust legal protection in

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<sup>4</sup> Kelsey Farish, 'Fame and fortune: how do celebrities protect their image?' (2017) <<https://kelseyfarish.com/2017/11/25/fame-and-fortune-how-do-celebrities-protect-their-image/>> accessed 3 June 2023.

<sup>5</sup> Ibid.

the United States with the current measures in place in British legislation, this paper aims to make a case for establishing a publicity right in the UK. The commercial exploitation of image and identity is widely documented, yet there is no commensurate legal protection in the United Kingdom. In an effort to force their claims into the best available legal right, claimants who lack statutory or common law publicity rights have looked to a variety of potential alternatives.<sup>6</sup> These options consist of the passing off tort—which was already mentioned—as well as the tort of breach of confidence and trademark infringements.

As mentioned earlier, this study will utilise a comparative method approach, which involves analysing and comparing relevant case law, legislative frameworks, and scholarly literature from both the United States and the United Kingdom jurisdictions. Chapter 3 offers a comprehensive assessment of the strategies used to protect image rights in the UK and introduces a potential solution to address the persisting ambiguity that hinders its advancement. Additionally, this chapter will examine the impact of court rulings on the commercial use of celebrity images.

It is important to consider the implications of using celebrity images in video games, especially since the industry is rapidly growing. Those involved in the industry, including professionals, developers, and publishers, should be aware of the legal implications and potential risks associated with such use. When there is a lack of regulation, individuals and potential users can suffer by being denied any potential permissible uses and defences. Litigation using the closest applicable doctrine, such as passing off or privacy, can also rob individuals of their rights and interests while depriving defendants of pertinent defences. By understanding and complying with relevant laws, informed decisions can be made to ensure fair and safe practices in the video game industry.<sup>7</sup>

## **Chapter One: The Intersection of Trademark Law and Video Games.**

The video game industry has had a significant impact on the entertainment world, providing countless players across the globe with an immersive experience. Section 1.1 examines the industry's growth and evolution over time. Moving forward, Section 1.2 provides an introduction to the subject of trademark law in both the United Kingdom and the United States Jurisdictions.

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<sup>6</sup> Gillian Black, 'Exploiting Image: Making a Case for the Legal Regulation of Publicity Rights in the United Kingdom' (2011) *European Intellectual Property Review*, Volume 33, Issue 7, Pages 413-418 <<https://www.research.ed.ac.uk/en/publications/exploiting-image-making-a-case-for-the-legal-regulation-of-public>> accessed 4 June 2023.

<sup>7</sup> Ibid.

Finally, Section 1.3 will delve into the safeguards that trademark law has established concerning specific elements within the realm of video games.

### 1.1. Levelling Up: The Video Game Industry's Quest for Global Domination.

Since they first appeared, video games have entertained both children and adults. They have advanced greatly since the early days of computer games and the original Nintendo and Atari releases. In actuality, the market for video games is enormous. It has surpassed both the music and film industries in size, and it is still expanding. The gaming sector brought in \$155 billion in revenue in 2020, and by 2025, researchers expect the sector will bring in more than \$260 billion.<sup>8</sup> In recent decades, technology has substantially transformed the creation and consumption of games, becoming a crucial aspect of the gaming industry. Enhanced graphics and innovative gameplay exemplify its impact. Graphics, in particular, have undergone significant advancements. Early video games featured large but rudimentary pixel art. However, thanks to improved hardware and software, modern video games now boast incredibly lifelike images (e.g. Fig. 1), made possible by more potent computers and Graphics Processing Units (GPUs).<sup>9</sup>

Technology has revolutionised gaming in multiple ways. It has transformed gameplay, allowing for mobile gaming and the rise of streaming services like Twitch and YouTube Gaming, which have made gaming a legitimate form of entertainment. People spend hours watching others play games, and some have even built careers out of it. Technology has also impacted the gaming industry's commercial aspects. Previously, console manufacturers controlled production, distribution, and marketing, but now developers have various avenues, including digital downloads, social media, and streaming services, to reach and engage with gamers.<sup>10</sup>

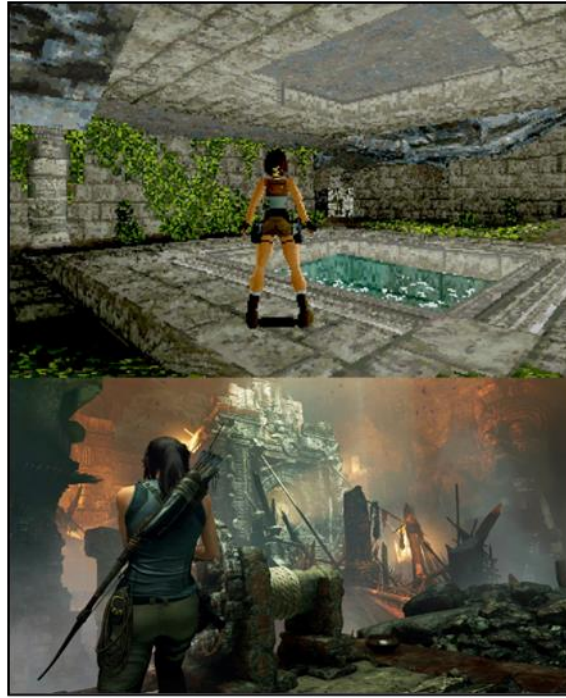
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<sup>8</sup> Jessica Clement, 'Video Game Market Value from 2020 to 2025' (2023) <<https://www.statista.com/statistics/292056/video-game-market-value-worldwide/>> accessed 5 June 2023.

<sup>9</sup> Cult MTL, 'Gaming Technology: How Has Technology Changed the Gaming Industry?' (2022) <<https://cultmtl.com/2022/08/gaming-technology-how-has-technology-changed-the-gaming-industry/>> accessed 6 June 2023.

<sup>10</sup> Martina Semanová, 'Emerging Technologies and Video Game Industry: Anticipation of Future Changes', (2020), JAMK University of Applied Sciences, <<https://core.ac.uk/download/pdf/326045969.pdf>> accessed 7 June 2023.





**Figure 1** Adrian Willings, “Video games through the ages: How games have changed over time” Pocket-lint.  
<https://www.pocket-lint.com/games/news/149572-then-vs-now-video-games-through-the-decades/>  
 accessed 6 June 2023.

Video games have become more lifelike than ever, so the days of pixelated graphics and constrained audio are a thing of the past.<sup>11</sup> Furthermore, legal issues, such as those involving intellectual property, invariably crop up as the industry develops. Therefore, it makes sense that game designers choose to include real-world components like actual objects, recognisable brands, or recognisable sceneries in their games. These items frequently come with trademarks that serve to protect the brand name or emblem and provide for legal protection.<sup>12</sup> Moreover, the utilisation of identifiable marks in video games extends beyond conventional trademarks. The incorporation of celebrities' likenesses in video games has emerged as a steadily rising concern (e.g. Fig.2). At present, the player experience is impacted by graphic accuracy, notably concerning positive emotions, intrinsic motivation, competence, autonomy, relatedness, and

<sup>11</sup> Andrew Beattie, ‘How the Video Game Industry Is Changing’ (2021) <https://www.investopedia.com/articles/investing/053115/how-video-game-industry-changing.asp#citation-3> accessed 7 June 2023.

<sup>12</sup> Anna Piechówka, ‘When video games meet IP law’ (2021) *WIPO Magazine* [https://www.wipo.int/wipo\\_magazine/en/2021/02/article\\_0002.html](https://www.wipo.int/wipo_magazine/en/2021/02/article_0002.html) accessed 8 June 2023.

immersion.<sup>13</sup> This evident link between fidelity and a player's enjoyment and aesthetic perception encourages businesses to further pursue their objective of crafting more realistic games.<sup>14</sup>



**Figure 2** Stephen McArthur, "Right of Publicity in Video Games - How You Can Legally Include a Celebrity in Your Game" Game Developer. <<https://www.gamedeveloper.com/business/right-of-publicity-in-video-games---how-you-can-legally-include-a-celebrity-in-your-game>> accessed 8 June 2023.

In the United States, there are regulations in place to protect a person's identity from unauthorised exploitation. These regulations include trademark and unfair competition laws, as well as state laws that govern the right of publicity. Together, these laws work to safeguard a person's personal and commercial interests.<sup>15</sup> This topic is briefly mentioned in this chapter and will be further explored in Chapter 2, where this paper will examine video game case law originating from right of publicity disputes.

## 1.2. Trademarks Unveiled: Unlocking the Mysteries of Brand Protection.

To really comprehend the role that trademarks play in the video game industry we must first define them. In the UK legislation, they are enshrined in Section 3 of The Trade Marks Regulations 2018, which states that a trademark is any sign that can be expressed in a form that enables the registrar, appropriate authorities, and the general public to comprehend clearly the object of the owner's protection. It must also be able to discern between the products or services provided by

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<sup>13</sup> Kathrin M. Gerling, Max Birk, Regan L. Mandryk, and Andre Doucette, 'The Effects of Graphical Fidelity on Player Experience' in AcademicMindTrek '13: Proceedings of International Conference on Making Sense of Converging Media (2013), Association for Computing Machinery <<https://doi.org/10.1145/2523429.2523473>> accessed 9 June 2023.

<sup>14</sup> Ibid.

<sup>15</sup> Jennifer E. Rothman, 'Navigating the Identity Thicket: Trademarks Lost Theory of Personality, the Right of Publicity and Preemption' (2022) Harvard Law Review, Volume 135, Issue 5 <<https://dx.doi.org/10.2139/ssrn.3949826>> accessed 10 June 2023.

one company and those provided by another. A trademark can contain a wide range of components, including words, designs, characters, numbers, colours, sounds, and even the shape of the product or its packaging. It aids customers in recognising and connecting goods and services with a particular brand. In order to build brand recognition, safeguard brand reputation, and prevent customer confusion, trademarks are crucial.<sup>16</sup>

Modern trademarks have diverse economic roles, for example, identifying products' origin and communicating information about their quality. Some trademarks gain inherent reputation, becoming associated with specific qualities beyond the product they represent (e.g. Fig. 3). This supports the utilitarian rationale for the dilution doctrine, preserving trademarks' effectiveness in economic and societal functions.<sup>17</sup> The identification and communication functions are closely interconnected. It is imperative to uphold both for comprehensive protection. A trademark plays a vital role by specifying the category of goods and helping consumers associate the relevant product information with the marked goods.<sup>18</sup>

Concerning Trademark Law, mainly, there are two causes of action for infringement, which are the likelihood of confusion doctrine and the dilution doctrine. Both of these are encompassed, respectively, in Sections 10(2) and 10(3) of the Trade Marks Act 1994. The Act states in Section 10(2) that a person infringes a registered trademark if they use a sign in the course of trade that meets either of the following conditions:

1. The sign is identical to the registered trademark and is used in relation to goods or services that are similar to those for which the trademark is registered, or
2. The sign is similar to the registered trademark and is used in relation to goods or services that are identical to or similar to those for which the trademark is registered.

In either case, if there is a likelihood of confusion on the part of the public, which includes the likelihood of associating the sign with the registered trademark, then infringement occurs.

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<sup>16</sup> United States Patent and Trademark Office, 'Trademark, patent, or copyright' (2021) <<https://www.uspto.gov/trademarks/basics/trademark-patent-copyright>> accessed 10 June 2023.

<sup>17</sup> Angela Adrian, 'Trademark Dilution, Right of Publicity, Image Rights: A Comparative Analysis of US, UK, Australian and Japanese Law' (2014) *Japanese Institute of Intellectual Property*, <<http://www.icondia.com/library/trademark-dilution-right-publicity-image-rights-comparative-analysis-us-uk-australian-japanese-law/>> accessed 11 June 2023.

<sup>18</sup> Mathias Strasser, 'The Rational Basis of Trademark Protection Revisited: Putting the Dilution Doctrine into Context' (2011 *Fordham Intell. Prop. Media & Ent. L. J.*, Issue 10, Volume 2, <<https://ir.lawnet.fordham.edu/iplj/vol10/iss2/9>> accessed 11 June 2023.



**Figure 3 Fig. 3 AR7 [ @AR72014 ], “Apple Logos. 1973 and Present Day” X, April 1 2023, 2:24 p.m., <<https://twitter.com/AR72014/status/1642156018355384323>> accessed 12 June 2023.**

Moreover, Section 10(3) states that a person infringes a registered trademark if, in the course of trade and in relation to goods or services, they use a sign that is identical to or similar to the registered trademark, under the following conditions:

1. The registered trademark has a reputation in the United Kingdom, and
2. The use of the sign, without a valid reason, either takes unfair advantage of the distinctive character or the reputation of the registered trademark or is detrimental to its distinctive character or reputation.

To explain the Likelihood of Confusion doctrine further; trademark law aims to safeguard mark owners from confusion caused by identical or similar marks. This protection nurtures brand reputation, helps consumers identify quality, and supports manufacturers' investments. The principle of consumer confusion shapes trademark law, affecting eligibility, loss prevention due to genericness, infringement assessment, and action in cases of infringement.<sup>19</sup> On the other hand, the Dilution doctrine refers to a legal concept that protects the value of a trademark by preventing competitors from reducing its uniqueness. There are two ways in which dilution can occur: Blurring and Tarnishment. Blurring happens when a unique trademark is associated with unrelated products, while tarnishment happens when a low-quality or objectionable product is

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<sup>19</sup> Ibid.

associated with a trademark. Both types of dilution can have negative effects on a trademark's reputation, even if consumers are aware that the products are not related.<sup>20</sup>

However, trademark law in the UK may not be as thorough as in the US for celebrities looking to protect their reputation and likeness.<sup>21</sup> The Trade Marks Act of 1994 (TMA) permits the registration of personal names as long as they distinguish the applicant's goods. The TMA, however, does not help celebrities unless they can register their names because it only protects registered trademarks. Unfortunately, the more well-known the celebrity, the less distinctiveness their name retains, making it quite difficult to register their name as a trademark in the UK.<sup>22</sup>

Under United States jurisdiction, the Lanham Act (Title 15, Sections 1114 and 1125 of the US Code) covers the concepts of likelihood of confusion and dilution. US Case Law outlines the standards used to evaluate likelihood of confusion, which may differ by circuit courts. These standards examine various factors, including the similarities and differences in appearance, sound, and meaning of the marks; the similarity or dissimilarity of the goods in question; the established trade channels; the number and nature of similar marks used on similar goods; instances of actual confusion; concurrent use without confusion; and the range of goods associated with the mark, among other factors.<sup>23</sup> The US Code defines "blurring" and "tarnishment" within the dilution doctrine. Section 1125 specifies "blurring" as an association that harms a well-known mark's commercial value due to its likeness to another mark. A test is outlined within the Code, considering factors like similarity, distinctiveness, usage exclusivity, recognition, and intention to associate. The code, on the other hand, specifies that tarnishment refers to an association that results from a mark's likeness to a well-known mark and damages the latter's reputation.

The Lanham Act prevents consumer confusion about goods' origin and extends to situations of false association or endorsement claims. These can arise from mark use in advertisements,

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<sup>20</sup> Julie Manning Magid, Anthony D. Cox & Dena S. Cox, 'Quantifying Brand Image: Empirical Evidence of Trademark Dilution' (2006) *American business law journal*, Volume 43, Issue 1.

<sup>21</sup> Jonathon Schlegelmilch, 'Publicity Rights in the U.K. and the U.S.A.: It is Time for the United Kingdom to Follow America's Lead' (2016) *Gonzaga Law Review Online*, <[https://www.kmclaw.com/media/article/236\\_Schlegelmilch%20Article%203-17-16.pdf](https://www.kmclaw.com/media/article/236_Schlegelmilch%20Article%203-17-16.pdf)> accessed 13 June 2023.

<sup>22</sup> Hayley Stallard, 'The Right of Publicity in the United Kingdom' (1998) *Loyola of Los Angeles Entertainment Law Review*, Volume 18, Issue 3.

<sup>23</sup> Brian D. Wassom, Amber M. Underhill, and Andrew L. Rossow, 'Trademark law and the right of publicity in augmented reality' in Woodrow Barfield and Marc J. Blitz (eds.), *Research Handbook on the Law of Virtual and Augmented Reality* (Edward Elgar Publishing 2018) <<https://doi.org/10.4337/9781786438591>> accessed 14 June 2023.

products, or creative works, and may involve a real person's name or likeness, alive or not.<sup>24</sup> In this context, the reason for protecting well-known marks from being diluted is not primarily to protect consumers, but rather to protect the owners of the marks from others using or benefitting from their investment in the marks. This is similar to the justification behind the right of publicity. Many courts and experts have noted the similarities between trademark dilution and the outer boundaries of the right of publicity.<sup>25</sup> To put it briefly, U.S. trademark law not only prevents consumer confusion but also guards against false associations and endorsements. This aligns with the right of publicity, making trademark law a crucial aspect in cases involving identity protection and brand preservation.

### 1.3. Guarding the Game World: Exploring Trademark Law's Role in the World of Video Games.

In the world of video games, trademark owners face difficulty using the likelihood-of-confusion test to protect their rights, especially if they are not game publishers. People do not usually mistake trademarks for game promotion. To solve this problem, the Rogers and transformative-use tests are used to evaluate trademark use in creative works in the US.<sup>26</sup> Different components of an unfair competition argument are highlighted differently by the Rogers test and the transformative-use test. The Rogers test looks at whether a trademark use intentionally misleads customers, whereas the transformative-use test looks at whether the usage creatively departs from the protected mark. The Rogers test was created as a result of the case known as *Rogers v. Grimaldi*, in which Ginger Rogers, a performer, sued the creators and distributors of the movie *Ginger and Fred* (e.g. Fig. 4). She claimed that by insinuating erroneously that she was involved in the film, the title violated the Lanham Act.<sup>27</sup>

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<sup>24</sup> William K. Ford, 'Restoring Rogers: Video Games, False Association Claims, and the Explicitly Misleading Use of Trademarks' (2017) *John Marshall Review of Intellectual Property Law*, Volume 16 <<https://repository.law.uic.edu/ripl/vol16/iss3/2/>> accessed 15 June 2023.

<sup>25</sup> Celeste H.G. Boyd & Stuart Paynter, 'What a Tangled Family Tree We Weave: Trademarks, Publicity Rights, and the Cross-Pollination of First Amendment Defenses through Video Games' (2011) *Journal of International Media & Entertainment Law*, Volume 4, Issue 1.

<sup>26</sup> Wesley W. Wintermyer, 'Who Framed Rogers v. Grimaldi?: What Protects Trademark Holders Against First Amendment Immunity For Video-games?' (2013) *Alabama law review*, Volume 64, Issue 5 <<https://www.law.ua.edu/pubs/lrarticles/Volume%2064/Issue%205/8%20Wintermyer%201243-1263.PDF>> accessed 16 June 2023.

<sup>27</sup> *Rogers v. Grimaldi*, 875 F.2d 994.



**Figure 4** Ginger and Fred movie poster from: Film/Art Gallery. "Ginger and Fred"  
<https://filmartgallery.com/products/ginger-and-fred-1540> accessed 16 June 2023.

Initially, the District Court ruled in favour of the defendants, considering the movie as an artistic expression, not a consumer product. Hence, they concluded the Lanham Act did not apply (addressing trademark infringement and false endorsement). However, the Second Circuit Court of Appeals acknowledged artistic works could still have a commercial aspect, and their titles might come under the Lanham Act's coverage. The Second Circuit clarified that the Lanham Act should be invoked only when an artistic work's title lacks an artistic connection to its content or deliberately misleads consumers about the creator or nature of the work.<sup>28</sup> In trademark infringement lawsuits under the Lanham Act, the *Rogers v. Grimaldi* ruling established a two-part test to determine whether the title of an artistic work is protected by the First Amendment.<sup>29</sup> According to the *Rogers* test, the defendant must demonstrate that the title of the work artistically corresponds to the underlying work and that it is not deceptive as to the origin or content of the work.

<sup>28</sup> Ibid.

<sup>29</sup> The First Amendment is a constitutional provision in the United States that guarantees the fundamental rights of freedom of speech, religion, press, assembly, and the right to petition the government for grievances.



On the other hand, the transformative-use test withholds the First Amendment's protection until the defendant shows that its use goes beyond a simple imitation of the plaintiff's mark. In this approach, the transformative-use test acknowledges the individual IP rights supporting a mark and demands that a user clearly distinguishes between use and mark. The test originates from the fair use theory in copyright.<sup>30</sup> The California Supreme Court adopted the standard in *Comedy III Productions v. Gary Saderup*, balancing the First Amendment and the right of publicity. Similar to the Rogers test, it addresses creators' free expression versus intellectual property holders' commercial control. In *Comedy III*, the Court recognised the right of publicity as intellectual property, prioritising its protection over free expression. The transformative-use test was applied by the Court to identify First Amendment-protected uses.<sup>31</sup>

The transformative-use test and the Rogers test have distinct approaches when it comes to the protection of trademarks under the First Amendment. Unlike the Rogers test, the transformative-use test does not automatically assume that all uses of a trademark are protected speech. Instead, its purpose is to determine if the use qualifies as protected free speech. Although initially developed for assessing right of publicity claims, it can also be applied to evaluate claims of unfair competition in the realm of trademark law. Courts have treated the right of publicity as synonymous with unfair competition under the Trademark Act when applying the transformative-use test.<sup>32</sup> This is seen in the case *Kirby v. Sega of America* (e.g. Fig. 5) when the court states that the Lanham Act serves as the federal equal to a right of publicity claim because it guards against the misrepresentation of a celebrity product endorsement when a celebrity's likeness or character is used in conjunction with a product.<sup>33</sup>

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<sup>30</sup> Wintermyer (n.26).

<sup>31</sup> *Comedy III Prods., Inc. v. Gary Saderup, Inc.*, 21 P.3d 797.

<sup>32</sup> *Ibid.*

<sup>33</sup> *Kirby v. Sega of Am., Inc.*, 50 Cal. Rptr. 3d





**Figure 5** Susan Ross and Saul Perloff, "NY Court Says No Grand Theft of Stars' Publicity Rights. What About California?" The Brand Protection Blog. <<https://www.thebrandprotectionblog.com/a-different-approach-to-right-of-publicity/>> accessed 20 June 2023.

Finally, as the video game industry has grown in importance, the use of celebrities' likenesses has increased, often without permission. In this case, trademark law has been utilised alongside the right of publicity. While UK trademark law may provide little protection for celebrities, US trademark law might provide significant insights. The aforementioned tests, which were pioneers in protecting publicity rights, will be thoroughly examined in the following chapter.

## **Chapter Two: Right of Publicity in the Digital Age.**

In the rapidly evolving landscape of the digital age, the concept of the "Right of Publicity" has emerged as a crucial legal consideration, particularly in the realm of video games and interactive media. This chapter examines the origin and evolution of the Right of Publicity in the United States through landmark case law. It also explores the UK's limited recognition and protection of image rights, leading to notable legal contrasts. Section 2.1 delves into defining the Right of Publicity, its connection with trademark law, and its genesis in the US. It also provides a brief overview of the UK's unique stance on image rights. The main focus of Section 2.2 will be the fundamental tests established by key case law to protect image rights in digital media in the United States. Section 2.3 will explore the potential for a hybrid test that harmonises freedom of expression with image rights.

## 2.1. Unravelling Image Rights on Both Sides of the Pond: Origins, Trademark Ties, and a Glimpse into the UK's Perspective.

As previously mentioned, a person's likeness has become a valuable economic asset in modern mass media, used in advertising, endorsements, and more. The right of publicity allows individuals to control the commercial use of their identity, including name, likeness, voice, and other distinguishing features.<sup>34</sup> This right empowers individuals to halt unauthorised commercial use of their image or personality and grants them sole authority to approve and license such usage. It acknowledges the inherent commercial value of one's identity.

The legal boundaries for protecting celebrities in this area are defined by the courts in common law jurisdictions. However, courts approach the subject of legal protection for celebrities and where to set the boundaries in various ways. In the United Kingdom, courts and legislatures have been reluctant to adopt a right of publicity or any other right that pertains to a person's unique personal characteristics, despite occasional arguments from plaintiffs suggesting otherwise.<sup>35</sup>

Under English law, there is no specific legal claim or right for individuals to protect their public image or reputation. However, laws concerning passing off, privacy, and breach of confidence have been improved to provide remedies against the unjustified use of a person's image in England and Wales. Other laws such as defamation, trade mark, and data protection can also offer some remedies, but to a lesser extent.<sup>36</sup> Scots law lacks particular rules or established legal frameworks about publicity rights. Although there is a commercial practice related to this problem, academic and legal discussions on it lack a thorough analysis. There are, however, four viable options, and what makes them appealing is the effectiveness they have shown in English legal proceedings. Although Scottish courts are not governed by these precedents, it is reasonable to assume that attorneys would draw upon the framework established by earlier instances decided by the House of Lords and Court of Appeal. Passing off, privacy, defamation, and data protection laws are among the possibilities.<sup>37</sup> Chapter 3 will provide a more detailed explanation and analysis of how these legal resources are applied in the UK.

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<sup>34</sup> Stephen Bate and Gervase de Wilde, 'Copyright, Moral Rights, and the Right to One's Image', in N A Moreham and others (eds), *Tugendhat and Christie: The Law of Privacy and The Media* (New York, 2016; online edn, Oxford Academic) <<https://doi.org/10.1093/oso/9780199685745.003.0012>> accessed 21 June 2023.

<sup>35</sup> Graeme B. Dinwoodie and Megan Richardson, 'Publicity Right, Personality Right, or Just Confusion?' in Richardson and Ricketson (eds), *Research Handbook on Intellectual Property in Media and Entertainment* (Elgar Publishing 2017), Oxford Legal Studies Research Paper No. 53/2017, <<https://ssrn.com/abstract=2997921>> accessed 21 June 2023.

<sup>36</sup> Bate (n.34).

<sup>37</sup> Black (n.2).

The United States is widely acknowledged as the birthplace of the earliest form of publicity rights, which is expected given its status as the home of the world's most prominent film industry. The emergence of celebrity culture and the commercial exploitation of celebrity images led to intrusions on privacy, eventually giving rise to claims related to publicity. The case credited with establishing the first recognition of publicity rights is *Haelan Laboratories v Topps Chewing Gum Inc*, a decision made in 1953 (e .g. Fig 6). In this particular case, Judge Frank created a new area of law by determining that an individual possesses a distinct entitlement to the commercial worth associated with their photograph, separate from their right to privacy. Whether this entitlement is referred to as a property right in this case or elsewhere, the term "property" simply signifies that courts will recognise claims that hold monetary value.<sup>38</sup>

In US legal cases, using a celebrity's name, image, or character in an advertisement to falsely imply their support or endorsement of a product is a common issue. This deceptive practice is akin to false designation of origin in trademark law, providing a legitimate rationale for the right of publicity.<sup>39</sup> The court specifically noted in *Toney v. L'Oreal USA, Inc.* that this is the essential premise underlying the right of publicity: whether the plaintiff promotes, or appears to endorse, the goods in question serves as the foundation for a right of publicity claim.<sup>40</sup>



**Figure 6 Eric E. Johnson, "Other Forms of Intellectual Property" Museum of Intellectual Property.**  
<[http://www.museumofintellectualproperty.org/exhibits/other\\_forms.html](http://www.museumofintellectualproperty.org/exhibits/other_forms.html)> accessed 24 June 2023.

<sup>38</sup> 202 F 2d 866 (2<sup>nd</sup> Cir 1953).

<sup>39</sup> Stacey. L. Dogan, & Mark A. Lemley, 'What the Right of Publicity Can Learn from Trademark Law' (2006), *Stanford Law Review*, Volume 58, Issue 4 <<http://www.jstor.org/stable/40040289>> accessed 23 June 2023.

<sup>40</sup> Ibid.

The Right of Publicity and Trademark Law are closely connected, despite their different origins. Trademark law focuses on consumer safety and market efficiency, while the right of publicity stems from the right to privacy, emphasising human dignity and identity control, which may not align with the financially-driven nature of trademark law.<sup>41</sup> Although they have their differences, the two legal systems share a common ground in preventing unfair enrichment.<sup>42</sup> Additionally, the Right of Publicity and trademark law's unfair competition and misappropriation doctrines are comparable. The unwarranted association of a real person with a product or service creates two challenges akin to trademark claims under US right of publicity laws. First, using someone's name or likeness without consent or payment is misappropriation comparable to traditional trademark infringement and unfair competition, risking tarnishment if the defendant's offering is of lower quality.<sup>43</sup>

The second issue is false association brought on by the unauthorised use of a person's name or likeness, which leads customers to believe that the person and the goods or service being advertised are affiliated or sponsored. These issues show how trademark law and the right of publicity are increasingly intertwined. This is evident in the widening scope of claims under Lanham Act Section 43(a) to shield individuals from false association claims.<sup>44</sup> Furthermore, courts presently regard the identities of these actual individuals in the same light as trademarks. The Sixth Circuit has observed that courts often recognise a property right in celebrity identities that is similar to that held by trademark holders in instances involving Section 43(a) claims.<sup>45</sup>

## 2.2. Pixelated Persona: Safeguarding Image Rights and Decoding Landmark Tests in the United States

Even though video games are a relatively new medium for art and entertainment, they commonly include real-world parallels to provide the player with an immersive experience. However, video game developers frequently show inconsistent behaviour when it comes to requesting authorisation from celebrities or trademark owners whose likenesses they use. In some cases, developers might not even try to ask for permission. In other cases, they may employ actors to participate in motion capture filming and rendering to provide a remarkably lifelike performance

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<sup>41</sup> Boyd & Paynter (n.25).

<sup>42</sup> Ibid.

<sup>43</sup> Marc Greenberg and Michael L. Lovitz, 'Right of Publicity and the Intersection of Copyright and Trademark Law' (6th Annual Intellectual Property Law Institute, 29 March 2012) <<https://digitalcommons.law.ggu.edu/pubs/484>> accessed 26 June 2023.

<sup>44</sup> Boyd & Paynter (n.25).

<sup>45</sup> Ibid.

(e.g. Fig 7).<sup>46</sup> The relatively recent development of the video game industry and the various legal criteria used by courts to decide cases concerning the unauthorised use of images in this particular industry are to blame for the inconsistent practices among developers.<sup>47</sup>



**Figure 7 Andre Anthony Thuraiatnam, "Keanu Reeves And 9 Other Celebrities Whose Likenesses Appear In Games" Game Rant. <<https://gamerant.com/celebrities-video-games-appearances/#keanu-reeves>> accessed 28 June 2023.**

In the previous chapter, it was stated that the Rogers test and the Transformative use test are used to safeguard trademarks in video games. Nevertheless, when employed in the context of publicity rights, the Rogers test does not fare as well as the transformative use test. In legal situations where artistic works involve the use of depictions of celebrities, the Rogers test is commonly employed to determine whether the portrayal holds artistic significance within the work. This is because the primary concern of courts in cases governed by the Lanham Act is to safeguard consumers from confusion. The third element of the Rogers test contributes to this objective by avoiding the challenging task of assessing the relevance of the depiction to the entire work.<sup>48</sup> However, the right of publicity primarily aims to protect the celebrities themselves and restricts certain uses of their likeness, even in the absence of confusion. Consequently, the second element of the Rogers test provides limited control over potentially infringing uses, necessitating a justification based on the First Amendment. As a result, the rationale behind including a celebrity in the work becomes more significant, and courts cannot afford the same

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<sup>46</sup> Arlen Papazian, 'Let's Stop Playing Games: A Consistent Test for Unlicensed Trademark Use and the Right of Publicity in Video Games' (2017) William & Mary business law review, Volume 8, Issue 3.

<sup>47</sup> Ibid.

<sup>48</sup> Nicholas E. Frontera, 'The Best of Two Tests: A Hybrid Test for Balancing Right of Publicity and First Amendment Interests Tailored to the Complexities of Video Games' (2015) UCLA entertainment law review, Volume 22, Issue 2 <<http://dx.doi.org/10.5070/LR8222027685>> accessed 29 June 2023.

level of deference to the creator when assessing the artistic relevance of the depiction to the overall expression of the work.<sup>49</sup>

Conversely, the Transformative test adopts a more commonly accepted approach to striking a balance between the conflicting interests of Freedom of Speech and Publicity Rights. There have been multiple applications of this test in the context of video games. For example, the California Court of Appeals determined that Sega's use of Kierin Kirby's likeness in the character Ulala was protected by the First Amendment in the Kirby v. Sega of America, Inc. case.<sup>50</sup> The court determined that Ulala constituted a transformative use of Kirby's celebrity image rather than merely a computerised reproduction of her. This was primarily a result of the character's construction altering both the environment and the celebrity's image.<sup>51</sup>

On the other hand, in the case of No Doubt v. Activision Publishing, Inc. (e.g. Fig. 8), the Court of Appeal of California also examined the right to publicity in video games. However, in this instance, the transformative use test was employed, and the outcome was that the work was not safeguarded.<sup>52</sup> The No Doubt court determined that, regardless of any other occurrences in "Band Hero" when depicting the No Doubt avatars, as they played rock songs, the same activity that made the band famous, there were no transformative elements to be found. Given that neither the environment in which the celebrity image was shown nor the picture itself was altered, No Doubt did not have any transformative characteristics.<sup>53</sup>

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<sup>49</sup> Ibid.

<sup>50</sup> Kirby (n.33).

<sup>51</sup> Ibid.

<sup>52</sup> No Doubt v. Activision Publishing, Inc., 192 Cal.App.4th 1018, 122 Cal. Rptr. 3d 397 (Cal. Ct. App. 2011).

<sup>53</sup> Ibid.



**Figure 8 Andrew Thomas, "No Doubt v. Activision Publishing, Inc." PATENT ARCADE.**  
<<http://patentarcade.com/wp-content/uploads/2019/02/7768347.jpg>> accessed 30 June 2023.

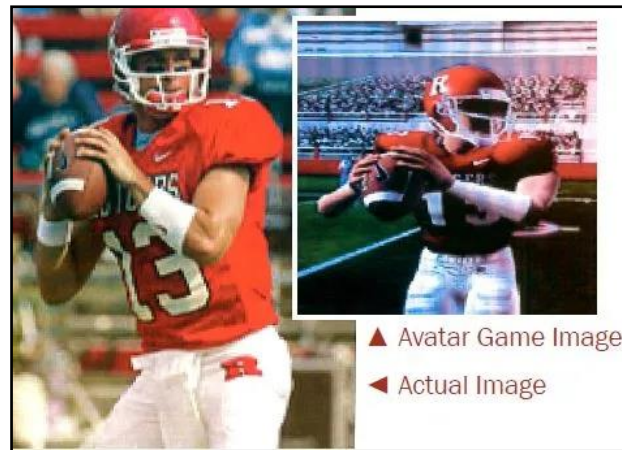
Nevertheless, the Hart v. Electronic Arts, Inc. lawsuit was the case that marked a significant milestone and pivotal moment in the application of publicity rights within the realm of video games. By utilising Hart's likeness and character features in the NCAA Football video games released between 2004 and 2006 (e.g. Fig 9), Electronic Arts was found to have violated Hart's right of publicity. Despite this, Electronic Arts contended that they should be granted summary judgement due to First Amendment rights. The District Court ruled in favour of Electronic Arts, holding that the video game NCAA Football was shielded from right of publicity claims by the First Amendment. Hart filed an appeal, and the Third Circuit majority sided with him.<sup>54</sup> The majority recognised different ways courts handle the balance between free expression and the right of publicity. They evaluated the interests involved and examined the predominant use<sup>55</sup>, Rogers, and transformative use tests. Ultimately, they concluded that the transformative use test provided the most suitable approach for balancing publicity and free speech.

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<sup>54</sup> Hart v. Elec. Arts, Inc., 717 F.3d 141, 146 (3d Cir. 2013).

<sup>55</sup> The predominant use test determines whether a work primarily serves expressive (protected) or commercial (potentially infringing) purposes, based on the First Amendment and right of publicity.





**Figure 9** Stephen McArthur, “Right of Publicity in Video Games - How You Can Legally Include a Celebrity in Your Game” Game Developer. <<https://www.gamedeveloper.com/business/right-of-publicity-in-video-games---how-you-can-legally-include-a-celebrity-in-your-game>> accessed 2 July 2023.

The Hart court rejected the predominant use test as being subjective and arbitrary. They argued that it would require judges to possess both impartiality as jurists and discernment as art critics. Furthermore, they found the Rogers test to be inadequate in balancing free expression and the right to control one's own identity. The court believed that applying the test would result in illogical outcomes.<sup>56</sup> Electronic Arts argued that Hart could not claim that his likeness was appropriated as a football player because the likeness was used in a football game. However, the Court disagreed with this argument, stating that accepting such reasoning would undermine the very essence of the right of publicity. Additionally, they stated that the activity that brought Hart fame should not hinder him from protecting his celebrity status.<sup>57</sup>

The Hart court adopted the transformative use test, which involves balancing a celebrity's right to profit from their image with the artistic value of the work. If the work significantly transforms the celebrity's identity, it is less likely to affect their economic interests related to the right of publicity. In this case, the court determined that the digital avatar of Ryan Hart closely resembled his real-life persona, lacking transformative elements that would meaningfully alter his identity.<sup>58</sup> When employing the transformative use test on Hart's case, the court found it necessary to analyse the specific elements of the work to ascertain if it was solely created for profiting from a celebrity's image. Moreover, the court emphasised that the transformative use

<sup>56</sup> Hart (n. 54).

<sup>57</sup> Ibid.

<sup>58</sup> Ibid.



test always takes into account how the celebrity's identity is employed or altered in other aspects of the work.<sup>59</sup>

### 2.3. Blending Boundaries: Exploring a Hybrid Test for Freedom of Expression and Image Rights.

When it comes to balancing publicity rights and freedom of expression, a test should be used to distinguish between cases where celebrity depictions enhance the overall expression of a work and cases where celebrity depictions are included solely to increase commercial value. The discussed tests assist courts in balancing conflicting rights, but a more exact test is required. This standard should protect a celebrity's financial interest in their image, as well as guard against the right stifling free speech.<sup>60</sup>

Various tests have been established in US case law to ascertain the correlation between an image and its usage in a particular work. Each test addresses distinct yet significant aspects, but when employed in isolation, they may produce diverse and occasionally surprising outcomes. Consequently, this uncertainty arises concerning the definition of an image rights violation and what falls within its purview.<sup>61</sup> To strike a fair balance between Publicity Rights and the First Amendment, a suitable test must take into account the complexities of interactive media like video games, while staying adaptable to more straightforward kinds of media. Furthermore, to the degree practical, this test should attempt to incorporate court guidance on how to balance publicity rights against the First Amendment's tenets.<sup>62</sup>

Hence, a hybrid test that combines the aforementioned tests by modifying their language to accommodate the competing interests involved has the potential to achieve a harmonious balance between these rights. This hybrid test draws from existing tests, allowing for the application of reasoning previously used by courts in their analyses. Moreover, the versatility of this hybrid test enables it to effectively address intricate media, such as video games, while remaining equally applicable and well-suited to more straightforward artistic representations. Its adaptable nature ensures its suitability across various forms of creative expression.<sup>63</sup>

This test would have 3 prongs: 1.- Is the portrayal of imitative aspects from the real-life person's image more prominent compared to the creative elements imbued into the character?; 2.- Does

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<sup>59</sup> Ibid.

<sup>60</sup> Frontera (n.48).

<sup>61</sup> DIMITA, Rizzi and Sero (n.1).

<sup>62</sup> Frontera (n.48).

<sup>63</sup> Ibid.

it seem like the usage is exploitative?; 3.- Does the usage seem deceptive?.<sup>64</sup> The initial inquiry is quite clear – it pertains to whether artwork or depiction is primarily based on replicating a real-life individual without much originality. This could lead to concerns about the commercial exploitation of that person's likeness without their permission or compensation. However, if the representation is mainly composed of imaginative elements that surpass mere imitation, it may be considered more transformative and potentially fall under the umbrella of free expression, where image rights may not be as relevant.

Regarding the second question, it pertains to how closely the image of a real person in a video game resembles their actual appearance. Imitative usage can be acceptable even without the celebrity's consent, as long as the intention is not solely to profit from their image. Essentially, the reproduction of the image should have a primary artistic purpose rather than being exploitative, and its use in the game should be proportional to its artistic role.<sup>65</sup> The final query asks whether or not the general public would presume that the person's image was used with their consent. Sports video game characters served as an example of this in the dissertation. They accurately mimic the athlete's physical attributes in a known environment without incorporating any creative storytelling or satire components. However, in modern sports games, such representations are usually required.<sup>66</sup>

While American laws and legal principles serve as a basis, there are notable differences in how image rights are treated between the US and the UK. As mentioned earlier, the UK Parliament has not enacted specific legislation addressing image rights, and British courts have not recognised it as a distinct right under common law. As a result, individuals seeking to protect their image in the UK must rely on various legal claims that often overlap to safeguard their rights.<sup>67</sup> Chapter 3 will conduct an analysis between UK image rights and US case law, leading to a compelling proposal to strengthen the UK's right of publicity.

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<sup>64</sup> Dimita, Rizzi and Seroo (n.1).

<sup>65</sup> Ibid.

<sup>66</sup> Ibid.

<sup>67</sup> Kelsey Farish, 'Do deepfakes pose a golden opportunity? Considering whether English law should adopt California's publicity right in the age of the deepfake' (2020) *Journal of Intellectual Property Law & Practice*, Volume 15, Issue 1, Pages 40–48, <<https://doi.org/10.1093/jiplp/jpz139>> accessed 9 July 2023.

### **Chapter Three: Unweaving Image Rights Protection in the UK: Strategies, Solutions, and Enhancements.**

This chapter presents a thorough evaluation of the strategies employed to safeguard image rights in the UK and proposes a potential remedy for the ongoing ambiguity hampering its progress. In Section 3.1, the discussion revolves around the primary defence mechanism employed, which is the passing off tort, regarding image rights. Section 3.2 delves into alternative defences and their typical applications, encompassing the evolution of the breach of confidence tort and the role of the data protection act. Furthermore, Section 3.3 offers perspectives on enhancing UK image rights, integrating the insights garnered from the dissertation's arguments and discoveries.

#### **3.1. Cracking the Code: Unmasking the Star Player – The Passing Off Tort as the Image Rights MVP**

As mentioned earlier in this paper, individuals in the UK do not have an explicit right of publicity. Therefore, they rely on different defences to safeguard their likeness, which will be thoroughly analysed. Among the frequently employed legal avenues, the passing off tort stands out. In the realm of the right of publicity doctrine, acknowledging a proprietary stake in a renowned individual's identity mirrors the acknowledgement of a proprietary stake in a celebrity's reputation or goodwill in a common law passing-off claim.<sup>68</sup> Both legal approaches recognise the necessity of safeguarding these individuals' economic concerns and curbing unauthorised gains. Nevertheless, firmly established legal precedent dictates that a right of publicity claim does not necessitate proving consumer confusion concerning the plaintiff's connection with, or endorsement of, the defendant's usage.<sup>69</sup>

Originally, the traditional form of passing off was outlined by Lord Oliver of Aylmerton in the House of Lords. He identified three essentials for a passing off case: a goodwill or reputation linked to the claimant's goods or services, evident through their name, trade description, or packaging; a misrepresentation by the defendant to the public, leading to the belief that the defendant's goods or services are the claimant's; and actual or potential harm to the claimant due to this misrepresentation.<sup>70</sup> This is often referred to as the trio of reputation,

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<sup>68</sup> David Tan, 'Cultural Studies and the Common Law Passing Off Action' in David Tan *The Commercial Appropriation of Fame: A Cultural Analysis of the Right of Publicity and Passing Off* (Cambridge University Press 2017) <<http://doi.org/10.1017/9781316488744.009>> accessed 9 July 2023.

<sup>69</sup> Ibid.

<sup>70</sup> HM Revenue & Customs, 'CG68455 – Intellectual Property Rights: image rights: law of passing-off', (2016), Capital Gains Manual, <<https://www.gov.uk/hmrc-internal-manuals/capital-gains-manual/cg68455>> accessed 10 July 2023.

misrepresentation, and damage. The passing-off action does not inherently acknowledge a proprietary right in elements like a name, likeness, or identity indicators. Instead, it safeguards goodwill as the factor that attracts customers, preventing a business from gaining an unjust competitive edge by linking itself or its products with a renowned individual.<sup>71</sup>

For a celebrity to legally defend their reputation, they need to establish the essential components of the passing off tort. Although there is no universal definition, passing off hinges on deceptive actions or misrepresentation. Yet, this misrepresentation must directly harm the celebrity's reputation. Mere confusion or misrepresentation is not adequate to prove the tort.<sup>72</sup> It is worth noting that in 2015, the English Court of Appeal explicitly recognised passing off as the appropriate legal recourse for celebrities who want to seek justice for the unauthorised commercial use of their fame. The court stated that just because a famous person does not have a broad right to control the use of their image, it does not mean that the use of a particular image cannot give consumers the false impression that the associated products have been officially endorsed.<sup>73</sup>

Regarding this legal claim, there have been influential cases that have propelled the evolution of UK law. Notably, the case of *Irvine v Talksport Ltd* stands out as a pivotal moment, signifying a shift in legal interpretation. This case expanded the scope of passing off to provide a remedy for celebrities whose identity indicators, such as name, image, or likeness, were exploited in a manner that inaccurately implied their endorsement of the defendant's products or services.<sup>74</sup> In this case, a passing-off claim was brought forth due to false endorsement. Eddie Irvine, a former racing driver, filed a lawsuit to prove his stellar reputation in the sport and demonstrate that Talksport's actions, such as transmitting a doctored photo of him listening to the radio station, misrepresented his support for it. It was asserted that Irvine's goodwill had been harmed by this deception. This case marked a key turning point because it was the first passing-off litigation to be successful in a false endorsement case in the UK.<sup>75</sup> It allows for individuals who have had their identity used without permission to seek compensation under delict. However, this ruling may not apply to non-celebrities or in situations where there is no misrepresentation.<sup>76</sup>

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<sup>71</sup> Tan (n.68).

<sup>72</sup> Ibid.

<sup>73</sup> Ibid.

<sup>74</sup> Practical Law Media & Telecoms, 'Overview of image rights', (2023), Thomson Reuters Practical Law, <<https://uk.practicallaw.thomsonreuters.com/2-202-2650>> accessed 12 July 2023.

<sup>75</sup> *Edmund Irvine & Tidswell Ltd v Talksport Ltd* [2002] 2 All ER 414.

<sup>76</sup> Black (n.2).

Irvine laid the groundwork for the subsequent High Court ruling in the Fenty case (e.g. Fig. 10), which occurred eleven years later. Rihanna won her lawsuit against Topshop for using her image on a T-shirt without her authorisation. Despite Topshop having the necessary copyright permission for the image, Rihanna argued that customers may believe she endorsed the product.<sup>77</sup> Evidence such as a previous collaboration, the image being from her "Talk that Talk" album photo shoot, Topshop's tweet about her from their flagship store, and her prominent position in the fashion industry all contributed to the verdict of misrepresentation.<sup>78</sup> However, the goodwill of celebrities is only protected against false representations within the parameters of the trinity in a passing off claim, unlike the right of publicity, which often protects against commercial exploitation of fame.



**Figure 10 James Robertson, "Rihanna wins High Court Battle against Topshop in '\$5MILLION lawsuit' for using her image without permission" Mirror. <<https://www.mirror.co.uk/3am/celebrity-news/rihanna-wins-lawsuit-court-battle-2107594>> accessed 14 July 2023.**

When it comes to the passing off tort for celebrities under English law, it is important to carefully examine how the ruling of the UK Supreme Court in Starbucks(HK) Ltd v British Sky Broadcasting Group Plc could impact their ability to utilise this legal protection in English and Welsh courts.<sup>79</sup> In this ruling, the Supreme Court determined that for a passing off case to succeed, claimants need to prove the presence of local customers as goodwill, rather than relying solely on reputation.<sup>80</sup> Furthermore, following this verdict, internationally recognised celebrities will need

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<sup>77</sup> Fenty v Arcadia Group Brands Ltd [2015] EWCA Civ 3.

<sup>78</sup> Ibid.

<sup>79</sup> Emmanuel K. Oke, 'Image rights and passing off: should reputation be enough for celebrities to succeed in English courts?' (2020) Journal of Intellectual Property Law & Practice, Volume 15, Issue 1 <<https://doi.org/10.1093/jiplp/jpz143>> accessed 15 July 2023.

<sup>80</sup> Starbucks (HK) Ltd v British Sky Broadcasting Group Plc [2015] UKSC 31.

to respond proactively. They must either engage in product endorsements to establish goodwill or secure trademark rights for their names and images within that jurisdiction.<sup>81</sup>

It is important to note that there is a significant difference between the American right of publicity and the English tort of passing off. In an action based on the right of publicity, it only takes the unauthorised use of a person's name or likeness for commercial gain to make a case. There is no need to prove goodwill. This raises the question of whether the English legal system should recognise a new tort of publicity rights to provide better protection for public figures under English law.<sup>82</sup>

### 3.2. Unlocking the Arsenal: Journey Through the Alternatives - From Whispered Secrets to Digital Shields

Another defence used is the law of privacy. The right to privacy functions as a crucial shield for individuals. Within England and Wales, the legal system has granted substantial safeguarding of an individual's privacy concerning their images and videos. This safeguarding could influence the evolution of image rights, as the dissemination of one's image is regarded as a facet of privacy. Despite not being immediately apparent, there exists a conceptual link between the strengthening of privacy protection and the expansion of commercial image rights.<sup>83</sup>

An illustration of privacy law being employed as a protective measure is evident in the legal case of *Douglas v Hello! Ltd* (e.g. Fig. 11). Here, Michael Douglas and Catherine Zeta-Jones contended that either privacy law or the breach of confidence tort should safeguard their entitlement to commercialise their private information. The controversy centred around disputed pictures taken by a Hello! Limited photographer without permission at the wedding of famous couple Michael Douglas and Catherine Zeta-Jones (the Douglasses). The Douglasses had given Northern & Shell plc, the owner of OK! magazine, the exclusive rights to publish their wedding pictures.<sup>84</sup>

This landmark case instigated the recognition of a restricted form of celebrity right of publicity by the courts in England and Wales and, ultimately, upon appeal to the House of Lords, it was acknowledged that the law of confidence extends protection to individuals who have established exclusive agreements with celebrities concerning confidential or private information related to them.<sup>85</sup> However, the House of Lords made a point of avoiding associating their ruling with the

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<sup>81</sup> Oke (n.79).

<sup>82</sup> Ibid.

<sup>83</sup> Practical Law Media (n.74).

<sup>84</sup> *Douglas and others v Hello! Ltd and others* [2005] EWCA Civ 595.

<sup>85</sup> Ibid.

recognition of publicity or image rights. The essential element was that the Douglasses possessed control over the photos' commercial value, allowing them to impose a confidentiality obligation. This protection was given due to commercial reasons rather than to protect personal information or the exploitation of someone's image.<sup>86</sup>



**Figure 11** Paul Roberts, "Douglas v. Hello!" Vimeo. <<https://vimeo.com/493217465>> accessed 18 July 2023.

The 1998 Human Rights Act has improved the level of protection for an individual's personal information and dignity under privacy law. This has resulted in a broader interpretation of the Tort of Breach of Confidence, which now encompasses private information and confidential data, in line with Article 8 of the European Convention of Human Rights.<sup>87</sup> The evolution is exemplified by the Campbell Case. Here, photographs of a British supermodel exiting a Narcotics Anonymous gathering were printed in a newspaper without her consent.<sup>88</sup> The supermodel, Naomi Campbell, initiated a legal action for breach of confidence under Article 8 of the European Convention of Human Rights and sought damages under English law. As the content was considered private, the court ruled in her favour. The complete case was subjected to the "reasonable expectation of privacy" assessment to reach a verdict.<sup>89</sup>

In Lord Nicholls' words, the concept of breach of confidence in privacy-related cases has moved beyond the requirement of an initial confidential association. He clarified that information pertaining to an individual's personal life cannot be appropriately labelled as "confidential" in

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<sup>86</sup> Practical Law Media (n.74).

<sup>87</sup> Tatiana Synodinou, 'Image Right and Copyright Law in Europe: Divergences and Convergences' (2014) Laws Issue 3, Volume 2 <<http://dx.doi.org/10.3390/laws3020181>> accessed 19 July 2023.

<sup>88</sup> Campbell v. Mirror Group Newspapers Ltd. [2004] UKHL 22.

<sup>89</sup> Ibid.

everyday terms. The term "private" is more suitable for describing such information, leading to the assertion that the core of the tort is better expressed as the misuse of private information.<sup>90</sup> Under Scots law, if someone's private information, such as images or other identifying details, is exploited in a way that violates their right to privacy (as outlined in Article 8) or breaches confidence, they can seek legal recourse in the Scottish courts.<sup>91</sup> However, this only applies to cases where the information in question is inherently private and not just incidental to a person's name, image, voice, or other identifying information. Additionally, privacy will only apply in cases where there was a reasonable expectation of privacy that was not outweighed by the need for freedom of expression under Article 10 of the ECHR.<sup>92</sup>

It is noteworthy that in the case of *Irvine v. Talksport*, Mr. Justice Laddie thought about using the Human Rights Act, specifically Article 8, and the defences put forth in *Douglas v. Hello! Ltd.* to potentially protect the claimant in circumstances where the tort of passing off did not adequately address false endorsements.<sup>93</sup> However, Mr. Justice Laddie ultimately decided that *Irvine* was sufficiently protected by the passing off law. It is important to remember that the tort of breach of confidence gave rise to the tort of misuse of private information. Thus, a new tort of publicity rights that is distinct from passing off may be recognised by English courts.<sup>94</sup>

When personal information has been handled unjustly or unlawfully, the Data Protection Act of 2018 can be employed to seek justice. The first principle of this legislation is breached when a third party, referred to as the controller, utilises an individual's personal information (like their name or image) without their consent or on a legitimate basis.<sup>95</sup> As per Section 99(1) of the Act, the individual whose data was used has the authority to request the controller to cease processing their data if it is adversely affecting their rights or interests.<sup>96</sup> In such cases, the affected individual might also qualify for compensation.<sup>97</sup>

The claimants were each given a modest sum of £50 by English courts in two prominent cases. While Michael Douglas and Catherine Zeta-Jones earned the same honour in *Douglas v. Hello!*<sup>98</sup>, Naomi Campbell received it in *Campbell v. MGN*<sup>99</sup>. In both instances, a larger sum of

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<sup>90</sup> Ibid.

<sup>91</sup> Black (n.2).

<sup>92</sup> Ibid.

<sup>93</sup> *Irvine* (n.75).

<sup>94</sup> Oke (n.79).

<sup>95</sup> Data Protection Act 2018.

<sup>96</sup> Data Protection Act 2018 s.99(1).

<sup>97</sup> Data Protection Act 2018 s. 168 and s. 169.

<sup>98</sup> Douglas (n.84).

<sup>99</sup> Campbell (n.88).



compensation for infringement of privacy under Article 8 and misuse of private information was given out together with the data protection award. This implies that the privacy claim is given more weight than the data protection concern. Additionally, the Data Protection Act includes explicit exceptions for circumstances in which data is handled for "special purposes", such as journalism, the arts, or literature.<sup>100</sup> This response does present an additional challenge for anyone interested in publicity rights claims, even though the claimants in Campbell and Douglas were successful in overcoming it.

### 3.3. Elevating Image Rights: Crafting the Perfect Frame – Fusing Ideas, Forging Solutions

The evidence from the study of US legislation and case law, along with the examination of legal options and case law in the UK, is increasingly pointing towards the need for a publicity right tort in the UK. The evolution of media, such as video games with progressively enhanced graphics, further supports this assertion. Undoubtedly, video games are forms of artistic expression protected by Freedom of Speech. Developers employ diverse visual techniques, infusing colour and employing captivating music, narratives, characters, and ideas to create virtual worlds. Much like books, films, and plays, video games embody artistic creations.<sup>101</sup> However, as demonstrated in the initial section of Chapter 1, the video game sector is highly lucrative, with a diverse player base spanning various demographics and age groups. Additionally, the industry shows significant growth potential due to rapid technological advancement and the popularity of mobile gaming.<sup>102</sup> The idea of video games as commercial products gains further support from collaborations between businesses and developers for product placement.<sup>103</sup> Consumers are accustomed to product advertisements across visual media, fostering associations between celebrity images and marketing agreements.<sup>104</sup> Therefore, video games should also be protected in right of publicity disputes under trademark law, as they are viewed as commercial goods and platforms for product placement.

A striking disparity exists between the common commercial practice of licensing personalities and the evident reluctance of British courts to fully recognise image rights. Instead of retaining

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<sup>100</sup> Data Protection Act 2018.

<sup>101</sup> Papazian (n.46).

<sup>102</sup> Ibid.

<sup>103</sup> Michelle R. Nelson, 'Recall of Brand Placements in Computer/Video Games' (2002) *Journal of Advertising Research*, Volume 42, Issue 2 <<http://dx.doi.org/10.2501/JAR-42-2-80-92>> accessed 27 July 2023.

<sup>104</sup> Elizabeth L. Rosenblatt, 'Rethinking the Parameters of Trademark Use in Entertainment' (2009) 61 *Florida Law Review*, Volume 61, Issue 5 <<https://scholarship.law.ufl.edu/flr/vol61/iss5/6>> accessed 28 July 2023.

the current mix of statutory and common law rights, there are compelling arguments in favour of enacting legislation that would provide enhanced clarity. To prevent the establishment of an overly expansive monopoly, such legislation would need to find a middle ground between an individual's ability to capitalise on their personality and the interests that may conflict.<sup>105</sup>

To serve as a source of inspiration for the hypothetical Publicity right tort, insights can be drawn from US Trademark Law, also known as the Lanham Act. An illustration of this concept can be found in the case of *Brown v. Elec. Arts, Inc.*, wherein the Court indicates that while claims under § 43(a) [Title 15 U.S. Code § 1125(a)] generally pertain to the utilisation of trademarks or trade dress to generate consumer confusion regarding affiliation or endorsement, the court has ruled that claims can also be brought under § 43(a) concerning the use of a public figure's persona, likeness, or other distinct identifying characteristics to create such confusion.<sup>106</sup> It can also draw inspiration from the proposed hybrid test mentioned in Chapter 2, where it seeks to balance freedom of expression and image rights by considering three factors:

1. The extent of imitation vs. creative elements in the depiction.
2. The potential for exploitative usage.
3. The possibility of public deception.

Lastly, the concept of the publicity tort, as elaborated, might stem from the passing off tort. Intriguingly, the passing off tort shares resemblances with the assertions presented by the court in the case of *Brown v. Elec. Arts, Inc.*, in that both revolve around false endorsements.

As this paper has addressed, there have been judgements declaring that if a celebrity's resemblance is essential to the game, game makers cannot make avatars of them without their permission. However, games that rely on images of celebrities for realism can evade this restriction. With connected users and modifiable games, players can generate and exchange avatars resembling celebrities and private individuals.<sup>107</sup> Furthermore, at present, supporting actors who undergo facial and body scanning have reported studios compensating them with a single day's pay for scanning (e.g. Fig. 12).

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<sup>105</sup> Jeremy Blum, Tom Ohta, 'Personality disorder: strategies for protecting celebrity names and images in the UK' (2014) *Journal of Intellectual Property Law & Practice*, Volume 9, Issue 2 <<https://doi.org/10.1093/jiplp/jpt229>> accessed 28 July 2023.

<sup>106</sup> *Brown v. Elec. Arts, Inc.*, 724 F.3d 1235 (9th Cir. 2013).

<sup>107</sup> Jason Zenor, 'If It's in the Game: Is There Liability for User-Generated Characters That appropriate a Player's Likeness' (2017) *The John Marshall review of intellectual property law*, Volume 16, Issue 3.



**Figure 12** Grace Widyatmadja, "Movie extras worry they'll be replaced by AI. Hollywood is already doing body scans" NPR. <<https://www.npr.org/2023/08/02/1190605685/movie-extras-worry-theyll-be-replaced-by-ai-hollywood-is-already-doing-body-scan>> accessed 29 July 2023.

This leaves the possibility open for their likeness to be utilised in various future endeavours. Furthermore, with the advancement of generative AI technology, capable of generating conversations, images, and videos by synthesising vast data using powerful computing hardware, it is not solely crowd scenes that are being digitally constructed.<sup>108</sup> Given that studios now hold the rights to these actors' likenesses, there is a potential for video game industry giants to employ a similar approach for upcoming games. If these factors, along with the arguments outlined in this dissertation, do not serve as sufficient motivation to drive the United Kingdom out of its current standstill regarding image rights, it is uncertain what else could prompt such a change.

## Conclusion

Video games have had a remarkable evolution that has been characterised by significant technological improvements and groundbreaking changes. The industry has advanced to the zenith of immersive virtual experiences that blur the lines between reality and the digital world

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<sup>108</sup> Bobby Allyn, 'Movie extras worry they'll be replaced by AI. Hollywood is already doing body scans' (NPR, 02 August 2023), <<https://www.npr.org/2023/08/02/1190605685/movie-extras-worry-theyll-be-replaced-by-ai-hollywood-is-already-doing-body-scan>> accessed 2 August 2023.

from its humble beginnings of pixelated graphics and basic gameplay mechanics. The clever incorporation of features from the real world, such as celebrity likenesses, into the world of gaming, is a reflection of this incredible evolution. Developers have tapped into the influence of celebrity images as games have become more intricate and realistic, in order to boost the realism and emotional impact of their works. The dynamic video game industry's meeting point with the area of image rights and celebrity likenesses highlights the intricate interplay between creative expression, brand identification, and legal considerations. The legal frameworks governing the use of these likenesses have come into focus as video games continue to blur the lines between entertainment and reality. These frameworks aim to strike a balance between artistic freedom, commercial objectives, and the protection of personal identity rights in this alluring digital world.

Within the context of image rights conflicts, the sensitive challenge of balancing freedom of expression with celebrities' complaints about the commercial exploitation of their resemblance is of the utmost significance. The necessity to create a balance between the right to communicate ideas and the preservation of people's identities becomes more and more important as the fields of communication, entertainment, and artistic creation grow more interconnected. On the one hand, preserving the right to free speech serves as a cornerstone of a democratic society, fostering invention, creativity, and civil conversation. On the other hand, the claims made by celebrities that their likeness is being used without their permission or just compensation underscore how important it is to protect individual rights and the integrity of one's public persona. To strike this balance, one must carefully assess the societal benefits of free speech against the possible harm done to people. This requires careful analysis of the context, impact, and purpose of the usage of celebrity likenesses. While navigating these murky waters, courts and legal systems make judgements that help to create a peaceful society where artistic expression can flourish, while upholding the rights and dignity of those whose likenesses are being used.

This study adeptly contrasted the application of trademark law between the United States and the UK. Undoubtedly, the American legal system, as evidenced through case law, has maximised the utilisation of trademark law's capabilities when addressing right of publicity matters, offering valuable insights that the United Kingdom could certainly consider for its own reference. Through the formulation of diverse examinations, the United States has been progressively advancing towards furnishing comprehensive safeguards for right of publicity scenarios, particularly those entailing video games. Additionally, this study underscored the

significance of delicately harmonising concerns related to freedom of expression with assertions of right of publicity. This intricate balance ensures a well-rounded protection that thoughtfully encompasses both facets.

In conclusion, this paper has consistently highlighted the contrasting trajectories of the right of publicity's evolution in the United States compared to the fragmented defences observed in the United Kingdom. Notably, Trademark Law, intricately linked to image rights, is more comprehensively employed across the Atlantic. The delineation of diverse tests discussed here holds the potential to significantly shape and inspire the enhancement of our image rights framework. However, this research has underscored that there is indeed value in utilising our unique defences, particularly the passing off tort, as a foundation for the potential development of a publicity right tort. By leveraging the rationale and justifications employed in the US context while capitalising on the strengths of our own image rights defences, it is the contention of this author that the United Kingdom possesses the capacity to transcend its current state of stagnation.

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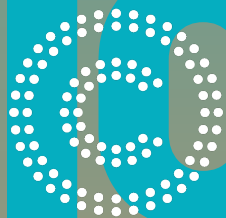
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